

cumstances *crassæ negligentiae*" (a). But the case from which this *dictum* is taken has been called by Lord Eldon, from the extraordinary doctrines contained in it, "a curious document in the history of trusts" (b); and certainly it is now indisputably settled that a trustee *cannot* lend on personal security (c). Lord Hardwicke said, "a promissory note is *evidence* of a debt, but no *security* for it" (d); and

(a) *Harden v. Parsons*, 1 Eden, 148.

(b) *Walker v. Symonds*, 3 Sw. 62.

(c) *Adye v. Feuillateau*, 1 Cox, 24; *Darke v. Martyn*, 1 Beav. 525; *Holmes v. Dring*, 2 Cox, 1; *Terry v. Terry*, Pr. Ch. 273; *Ryder v. Bickerston*, cited *Harden v. Parsons*, 1 Eden, 149, note (a), and more fully *Walker v. Symonds*, 3 Sw. 80, note (a); *Vigrass v. Binfield*, 3 Mad. 62; *Walker v. Symonds*, 3 Sw. 63; *Anon. case*, Lofft, 492; *Keble v. Thompson*, 3 B. C. C.

112; *Wilkes v. Steward*, G. Coop. 6;

*Clough v. Bond*, 3 M. & Cr. 496; *per Cur.*; and see *Pocock v. Reddington*, 5 Ves. 799; *Collis v. Collis*, 2 Sim. 365; *Blackwood v. Borrowes*, 2 Conn. & Laws. 477; *Watts v. Girdlestone*, 6 Beav. 188; *Ex parte Geaves*, 8 De G. M. & G. 291.

(d) *Ryder v. Bickerton*, cited *Walker v. Symonds*, 3 Sw. 81, note (a).

tions unless all *cestui que trust* can consent; *Deaderick v. Cantrell*, 10 Yerg. 263; *University v. Clay*, 2 B. Mon. 385; *Lamb's App.* 58 Pa. St. 142; as they are opposed to changes except for good cause shown; *Plympton v. Plympton*, 6 Allen, 178; *Murray v. Feinour*, 2 Md. Ch. 418; if trustees invest with the assent, or at the request of the *cestui que trust*, they are not liable for any loss; *Poole v. Munday*, 103 Mass. 174; *Clermontel's Est.* 12 Phila. (Pa.) 139; this is not true if the *cestui que trust* is incapable or under a disability; *Kent v. Plumb*, 57 Ga. 207; *Barton's Est.* 1 Pars. Eq. 24; except in case of a married woman, having property to her sole and separate use; *Sherman v. Parish*, 53 N. Y. 483; and acquainted with the facts and her legal rights; *Adair v. Brimmer*, 74 N. Y. 539. Taking a second mortgage as security is not *per se* evidence of negligence; *Nance v. Nance*, 1 S. C. 209; *Clark v. Railroad Co.* 58 How. Pr. 21; for rule as to measure of care required, see 6 Abb. new cases, 447; a loan by a trustee of a married woman to her husband without security is a breach of trust; *Dunn v. Dunn*, 1 S. C. 350. If the property is not in proper securities, the trustee should sell and reinvest; *Goodwin v. Howe*, 62 How. Pr. 134; the trustee is liable for receiving improper securities from his predecessor, and for want of care in investing in government bonds and real estate; *Mills v. Hoffman*, 26 Hun, 594.

The guardian *ad litem* of an infant has no authority after the object of a suit has been accomplished to act for the infant in the investment of his funds; *Dix v. Jarman*, 1 Chy. Chamb. 38; public securities do not include municipal debentures; *Ewart v. Gordon*, 13 Chy. 40; a trustee may not invest in bank stock, unless the trustee, being competent, gives his assent; *Harrison v. Harrison*, 14 Chy. 586; trustees may erect a new building if in their judgment it will be profitable; *Re Henderson's Trusts*, 23 Chy. 45; *Smith v. Smith*, 23 Chy. 114. See also *Smith v. Rowe*, 11 Chy. 411; *Wiard v. Gable*, 8 Chy. 458; *Cameron v. Bethune*, 15 Chy. 486; *Patterson v. Lailey*, 18 Chy. 13; *Baldwin v. Crawford*, 2 Chy. Chamb. 9; *Goodfellow v. Robertson*, 18 Chy. 572.